Karnataka High Court, to conduct an inhouse inquiry into the matter. The Delhi High Court has since withdrawn all judicial work from Justice Varma, also a member of its collegium, until further orders. However, he has categorically denied any connection to the cash. In his formal response to the inquiry, he described the outhouse where the fire broke out as "completely disassociated" from his living quarters, stating it was "unlocked and accessible both from the official front gate as well as the backdoor of the staff quarters".

Justice Varma maintained that neither he nor any family member had placed cash in the storeroom, dismissing the allegations as "totally preposterous" and suggesting the incident was "a conspiracy to frame and malign" him. On March 23, Union law minister Arjun Ram Meghwal addressed the controversy, exercising notable restraint in his words. "This case is with the Supreme Court. It has formed a three-member committee. Let the committee report come. Then we will talk about this," he said. Meanwhile, on March 25, Vice President Jagdeep Dhankhar called for an all-party meeting to discuss the issue, calling it a "critical" and "serious" matter.

The scandal has drawn pointed commentary from prominent legal figures too. Senior advocate and Rajya Sabha MP Kapil Sibal described corruption within the judiciary as "a very serious issue" that has persisted for years. "It is time for the Supreme Court to review how appointments are made," Sibal argued, calling for greater transparency and care in the judicial selection process. The judiciary and the Union government are already locked in a tense standoff over the appointment of high court and Supreme Court judges through the collegium system. Senior advocate Indira Jaising focused on the procedural aspects, urging the SC collegium to "immediately disclose the exact amount of money recovered" to prevent speculation.

The Allahabad High Court Bar Association's response to Justice Varma's proposed transfer—though the top court maintained it was a separate, ongoing process with no connection with the cash recovery case—has been particularly vehement, drawing attention to what they termed the "Uncle Judges Syndrome". This controversial practice refers to alleged favouritism and nepotism in appointments and rulings. The association portrayed Justice Varma's case as symptomatic of systemic problems, where personal connections potentially shield judges from proper scrutiny.



Justice Yashwant Varma

BLAZE AND THE BACKLASH

- **On March 14, fire breaks out at Justice Varma's residence; a huge stash of cash found by firefighters**
- **On March 23, the Supreme Court forms a committee to inquire the matter. Delhi HC withdraws all judicial work from Justice Varma**
- **Justice Varma denies link to cash, calls it a "conspiracy to frame" him**
- **SC proposes his transfer to parent Allahabad High Court, says it's unrelated to the cash discovery case**
- **Allahabad HC Bar Assn opposes transfer, alleges collegium favouritism**

The mechanisms for investigating and disciplining judges in India reflect the tension between judicial independence and accountability. Two principal procedures exist. The first is an inhouse procedure established by the SC in 1999, wherein complaints against HC judges are initially evaluated by the chief justice of the relevant court. If deemed serious enough, the matter is referred to the CJI, who may constitute a three-member committee of judges to conduct a confidential inquiry. This committee may recommend that the judge resign or, if the judge refuses, advise the withdrawal of judicial work pending formal impeachment proceedings. The second mechanism is the constitutional impeachment process, as detailed in Article 124(4) and (5) of the Constitution, read with Article 218, and the Judges (Inquiry) Act of 1968. This procedure requires a motion supported by at least 100 Lok Sabha members or 50 Rajya Sabha members, followed by an investigation by a three-member judicial committee. If misconduct is proven, both Houses of Parliament must vote with a two-thirds majority to remove the judge, after which the President issues the formal removal order.

The criminal prosecution of judges falls under a separate framework. In *K. Veeraswami v. Union of India* (1991), the Supreme Court established that while judges are considered "public servants" under the Prevention of Corruption Act, no criminal case can be registered against a high court or Supreme Court judge without prior sanction from the Chief Justice of India. This requirement aims to shield judges from frivolous or politically motivated complaints while preserving a path for legitimate accountability.

The effectiveness of these mechanisms has been repeatedly questioned. No Supreme Court or high court judge has ever been successfully impeached in India, despite several attempts. Criminal prosecutions have also been equally rare and largely inconclusive. In 2022, the ministry of law and